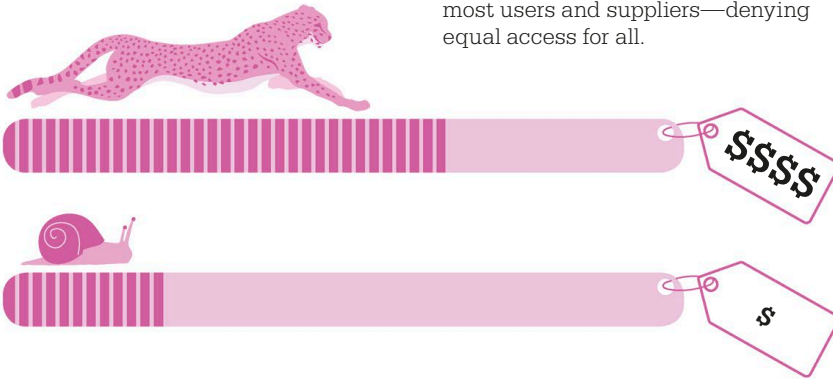


Any two-track internet network, critics argue, inevitably favors the rich and will lead to slower connections for most users and suppliers—denying equal access for all.



also has an ISP company and has confronted heavyweight corporate ISP rivals, such as Comcast, Verizon, and AT&T—which have opposed net neutrality. As a search engine, sending huge amounts of data and therefore occupying an immense amount of bandwidth, Google has questioned why it should pay much higher prices for access, effectively subsidizing its rivals.

Political bias

There was a clear political element to the existing, often bitter battle between the advocates of a

regulated internet and those of a free-market internet. The five FCC commissioners responsible for the Open Internet Order in 2015 were all political appointees of President Barack Obama. By 2017, the mostly new FCC commissioners had been appointed by President Donald Trump. Their support for corporate interests was clear, and the FCC reversed its 2015 decision in December 2017, with a Restoring Internet Freedom Order, which also prohibited state or local regulation of ISPs.

The 2017 Order made inevitable legal battles with individual states that wanted to enact their own net neutrality. In early 2018, more than 20 states filed a lawsuit against the Order, but supporters of net neutrality suffered a significant setback in October 2019, when the District of Columbia Court of Appeals ruled that the FCC had acted within its rights in ending net neutrality. The Court's controversial ruling flew in the

face of consistent public support for net neutrality: some polls showed 80 percent of Americans were clearly in favor. The Supreme Court may be the ultimate arbiter of this otherwise unresolved and hugely controversial debate—a ruling by that court could have a direct impact on the position of the US as the dominant influence on the internet across the world.

Different approaches

The acute controversy around net neutrality in the US partly reflected the difficulty of legislating for a world where technology constantly evolves. The problem is not only confined to the US. In the European Union, for example, the preferred solution is strongly in favor of net neutrality, a position that even post-Brexit Britain endorses.

The European stance was partly driven by Finland, which in 2009 introduced a Universal Service Obligation (USO) that strongly supported net neutrality and made the provision of broadband a legal obligation. Broadband availability in rural areas in many countries is still frequently as pressing an issue as net neutrality. ■

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What is responsible for the phenomenal development of the internet? It certainly wasn't heavy-handed government regulation.

Ajit Pai

FCC chairman, 2017

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Ajit Pai, made chairman of the FCC by President Trump in 2017, is a favored target of net neutrality campaigners. Ironically, he was first appointed to the FCC in 2012 by President Obama.

